



NATIONAL HIGH SCHOOL  
ETHICS BOWL

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# NATIONAL CASE SET

2025-2026

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**EDITOR** Leonidas Kirby

**ASSOCIATE EDITORS** Alex Feldt, Ph.D.

**CASE CONTRIBUTORS** Hope Foster, Justin Gerenza, Jules Greenway, Leonidas Kirby, Daniel Kofman, Neeraja Kulasingam, Lindsey Li, Kody Mitchell, Mira Mullis, Elijah Parish, Mannah Patel, Dash Shulman, Michael Vazquez

**EDITORIAL BOARD** Mark Doorley, Ph.D., Robin Larson, Ph.D., Julie Piering, Ph.D., Sarah Stroud, Ph.D., Michael Vazquez, Ph.D.



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# FROM THE EDITORIAL BOARD

## ABOUT THIS DOCUMENT

The cases in this set were compiled for the 2025-2026 National High School Ethics Bowl Championship. Authored by a diverse group of community members, cases have been edited for content, clarity, and pedagogical focus by an Editorial Board composed of NHSEB's Executive Committee and Case Advisory Committee. More information on NHSEB personnel is available at [nhseb.org/people](https://nhseb.org/people).

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## DISCUSSION QUESTIONS

The Discussion Questions provided by the Editorial Board in this set are designed to identify and get students thinking about the various moral issues and potential angles of consideration involved in each case. Discussion Questions do not (and are not designed to) exhaust the range of possible considerations on a given topic. Discussion Questions *will not* be used for officially-sanctioned NHSEB Regional Competitions or Divisional Playoffs. The Moderator Questions asked at each NHSEB-affiliated event will remain confidential until they are revealed in-match to preserve competitive fairness. For more information about competition procedures, please review NHSEB's [2025-2026 Rules Manual](#).

## CASE REFERENCES AND RESEARCH

Cases designed for use in the National High School Ethics Bowl are often directly based on or otherwise inspired by real-world events, debates, etc. Throughout this case set, citations and references are included to provide further context on these events and issues where appropriate. Source materials cited in this document will only be identified once per case, though may be referenced more than once within a given case.

While NHSEB's rules do not actively discourage students from conducting outside research as they develop their arguments for competition, such research is *not* of primary importance when it comes to evaluation under the [NHSEB Scoring Criteria](#). A well-researched and well-cited argument is not necessarily an indication of a good normative argument that displays inventive thinking, deliberative reasoning, or other core features emphasized by the Ethics Bowl format. For more information on the role of research, official match and scoring procedures, and more, please review NHSEB's [2025-2026 Rules Manual](#).

# 1: License to Speak

Scroll for a few minutes on social media these days and you will see content from influencers across all spheres of life. One moment, you're watching a travel vlogger review street food in Thailand; the next, someone's explaining how to open a Roth IRA or treat acne using products recommended by board-certified dermatologists. Influencers now occupy roles once reserved for professionals like teachers, financial planners, and doctors, offering guidance to millions.

But the digital landscape is also rife with misinformation. A 2024 UNESCO survey found that 62% of content creators do not rigorously fact-check the information they share<sup>1</sup>. To address this, the Cyberspace Administration of China (CAC) has introduced new rules requiring influencers who discuss topics with serious implications, like finance, medicine, education, or law to hold formal qualifications. These required credentials include university degrees, professional certifications, and licenses. The CAC has said these rules are necessary to protect the public from the harmful effects of misleading content and dangerous advice circulated online.<sup>2</sup>

Proponents of this policy claim it ensures credibility and reduces harm. For example, an unqualified influencer promoting unsafe medical treatments or supplements could mislead thousands. Requiring credentials could prevent such outcomes and help rebuild public trust. They argue that some limits are justified if they prevent serious misinformation and protect collective well-being. The overall standard of online discourse could be raised by this law, with ripple effects into other content topics, ensuring other influencers check the truthfulness of their claims.

Critics, however, view the rule as a potential overreach of government power. In countries with historically strong censorship policies, such policies might suppress dissent or alternative viewpoints under the guise of public safety. Questions remain about what constitutes a serious topic to be regulated and what qualifications are valid. Traditional or non-academic experts, such as self-taught investors or practitioners of alternative medicine, could be silenced despite years of experience. These requirements risk becoming elitist, keeping the dialogue on important topics only in the hands of those with institutional credentials, regardless of their practical, real-world experience. The government could also deem an expert with relevant, non-academic experience unqualified simply because their views challenge the established narrative.

## DISCUSSION QUESTIONS

1. Does a person who has achieved expertise through life experience have the same moral right to offer advice as someone with formal qualifications?
2. Do certain fields require censorship more than others? How do we draw the line?
3. Does the government have a responsibility to ensure the public receives credible information?
4. When, if ever, does the need for truth outweigh the right to speak freely?

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<sup>1</sup> <https://www.unesco.org/en/articles/2/3-digital-content-creators-do-not-check-their-facts-sharing-want-learn-how-do-so-unesco-survey>

<sup>2</sup> <https://economictimes.indiatimes.com/news/international/global-trends/us-news-no-degree-no-discussion-china-tightens-the-grip-on-influencers-and-its-new-law-has-sparked-massive-debate-online-check-details/articleshow/124929667.cms>

## 2: The Price of Consent

Riverside Medical Center is one of the largest public hospitals in the state, serving a broad and diverse urban population. Many of its patients are uninsured or underinsured, and the hospital constantly struggles to meet demands for affordable care, including critical cancer treatment. Administrators have recently faced rising drug costs, limited federal funding due to a long-lasting government shutdown, and, therefore, growing waiting lists for essential care.

A major pharmaceutical company, LodgeCare, approaches Riverside with a partnership proposal. The company offers its newest cancer medication at no cost to the hospital on one condition: the drug will only be provided to patients who agree to participate in LodgeCare's clinical trial, which aims to test the long-term effectiveness and safety of the treatment. Patients who decline to enroll in the study would have to pursue other, often far more costly, treatment options, or simply go without treatment.

Riverside's leadership sees the offer as an opportunity to expand access to cutting edge care for patients who otherwise could not afford it. The hospital's Oncology Department, directly dealing with cancer patients, notes that participation in the trial might save many lives and give patients new hope. The hospital's ethics board confirms that the proposed study complies with federal regulations for informed consent and research oversight.

Still, several staff members express concern regarding the proposal. Even though participation is technically voluntary, patients with limited financial means may feel as if they have "no real choice." A senior oncologist, Dr. Andrews, warns that the partnership blurs the line between research and standard medical care. "When access to treatment depends on saying yes to research," she says, "can we really call that consent?"

Patient advocates echo these worries. They argue that the partnership could exploit Riverside's most vulnerable patients, forcing them to become research subjects simply because the alternatives are unaffordable. Critics also question whether data from such trials can be ethically valid if participants are motivated by financial pressure rather than true willingness.

Hospital administrators respond that rejecting LodgeCare's offer would also have moral consequences. Without the partnership, many patients might go entirely without care, leading to preventable deaths. They emphasize that all participants would be fully informed of any risks, could withdraw at any time, and would be monitored carefully by both hospital and government oversight boards. In addition, patients often choose to enter trials for lots of different reasons that could also be seen as impacting their "true willingness", and are broadly accepted. Administrators argue that healthcare providers at Riverside have a duty to help as many patients as possible with the resources they have.

### DISCUSSION QUESTIONS

1. Can consent be considered voluntary when patients lack affordable alternatives?
2. Does the hospital have a greater duty towards individual autonomy or the maximization of treatment access for the greatest number of patients?
3. Should institutions accept ethically imperfect partnerships if they lead to more care and potential medical breakthroughs?
4. How should public hospitals balance financial reality with an ethical obligation towards vulnerable patients?

### 3: Home, Not Alone.

Smart-home technology has become increasingly common. Voice assistants can dim lights, lock doors, adjust thermostats, and answer questions on demand. Smart cameras watch over front porches, baby monitors stream live video to parents' phones, and AI-powered devices learn household routines to anticipate needs. For many consumers, these tools promise convenience, efficiency, and safety. For others, they raise concerns about privacy, surveillance, and control.

Recently, the idea of the “smart home” has expanded beyond stationary devices. In October 2025, a robotics company called 1X Technologies released NEO, a home robot designed to automate household chores and provide assistance with everyday tasks, such as dusting, emptying the dishwasher, and doing laundry. Promotional videos show NEO walking through homes, interacting with objects, and responding naturally to its environment. To many observers, NEO appears to be an autonomous AI assistant that can observe and decide how to act within a private living space.

However, 1X has emphasized an important detail: NEO is not fully autonomous. Instead, it is often remotely piloted by human operators, especially during early deployment. These operators may intervene to guide the robot's actions, correct mistakes, or ensure safety<sup>1</sup>. According to the company, this “human-in-the-loop” approach makes the system safer and more reliable than a fully autonomous robot acting independently inside a home. A remote human can recognize hazards that an AI might miss, avoid unsafe actions, and respond appropriately in unexpected situations. A robot that can move freely inside a home has the potential to cause physical harm by knocking over objects, blocking exits, or malfunctioning near children or pets. From this perspective, remote piloting is a safeguard, not a deception. Smart-home systems *already* rely on cloud processing and human oversight, and NEO simply extends this model into physical space. If the goal is to reduce accidents and improve performance, human involvement may be a moral necessity. Still, some worry that introducing both potential AI error and potential human error may actually increase anxiety, especially if users do not know when control is automated and when it is manual.

Additionally, critics worry that transparency is lacking. If a robot moves through a home, listens to conversations, or observes daily routines, homeowners may reasonably assume those perceptions belong to a machine rather than a distant human being. Even if companies disclose remote piloting in terms of service or press interviews, many consumers may not fully grasp when a human is watching or controlling the device. A person may be comfortable with an algorithm processing data but deeply uncomfortable with a stranger seeing inside their home. Smart-home AI systems rely on and improve by using continuous streams of video feeds, audio recordings, movement patterns, and behavioral data. Over time, data collected by these devices will improve their safety and improve functionality. Even if this data is used to improve performance and ensure safety, once collected data can be stored, shared, or repurposed in ways users did not anticipate.

Still, smart-home robots provide real benefits. Autonomous assistants could assist elderly individuals or people with disabilities and reduce household labor. For families struggling to balance work and care, these technologies might offer genuine improvements in quality of life. From this view, rejecting smart-home AI due to privacy fears may deny people meaningful assistance.

#### DISCUSSION QUESTIONS

1. If a remotely piloted robot captures footage of a private moment, who owns that data?
2. What moral obligations might remote pilots have when their work could infringe on the privacy rights of the client?

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<sup>1</sup> <https://www.techradar.com/ai-platforms-assistants/neo-robot-sounds-like-the-answer-to-our-home-chore-prayers-but-also-a-potential-privacy-nightmare>

## 4: For the Love of the Game

Roland has historically been a huge fan of mixed martial arts (MMA) fights. In this sport, two fighters get into a ring and use every martial technique they have learned to knock down their opponent. There are very few rules, so forcing others to yield sometimes requires extreme measures. Since both participants are extremely tenacious, these matches tend to go until blood is shed, a fighter is knocked unconscious, or one fighter is beaten into submission.

Roland loves MMA because he finds the combat techniques and strategy that these fighters employ to be brilliant. He admires how dedicated they are to their training and how well they have developed their bodies for the sport. MMA is very popular and while plenty of others think similarly to Roland, there are undoubtedly also some people who simply enjoy seeing the blood and violence.

Recently, many of Roland's favorite MMA fighters have retired due to severe injury and it's gotten to the point where Roland can no longer ignore how violent MMA is. MMA injuries can be gruesome; broken bones, torn muscles, and permanent damage to sensitive organs, like a person's eyes, are common. Some fighters have said their injuries were so severe that they physically couldn't keep fighting or have talked about how the pain is simply too much for them to handle anymore. Other fighters reference their friends and colleagues who have died in the ring as part of their reasons for leaving the sport.

Roland feels conflicted that his love of the sport might have facilitated fighters experiencing such pain. He wonders whether he might have a moral obligation to stop watching and supporting a sport where people are at risk of such extreme injury. Still, MMA isn't unique for having athletes injure themselves. Sports, in general, are an inherently risky business, even if to different degrees. Roland feels it would be unreasonable to argue that it's immoral to spectate *any* sport where athletes could get hurt. Besides, these athletes aren't ignorant of the risks and still consent to the danger. Still, he wonders to what extent people should be allowed to risk their health for the sake of public enjoyment or financial gain.

### DISCUSSION QUESTIONS

1. To what extent can spectators of a violent sport be considered responsible for an athlete's pain?
2. When all athletes consent, at what point (if any) would it become *impermissible* for a sport to be watched?

## 5: Story of my Strife

In the weeks following a contentious national election, Ryan, a high school senior, takes to Instagram to vent his frustration. In a series of late-night posts and stories, he denounces the election results as “a moral failure” and describes the politicians and policy that he opposes as “cruel and dangerous.” More controversially, Ryan turns his attention to people closer to home. He writes that anyone who voted for or supports these politicians and policies is “actively harming others,” calling them “selfish,” “ignorant,” and “part of the reason the world is broken.” In one post, he adds, “If you’re offended by this, maybe that’s because you’re guilty.”

Ryan’s posts quickly spread throughout his school. Screenshots circulate in group chats and hallways buzz with debate. Some students praise Ryan for saying what others are afraid to say, arguing that polite language has failed to address the real, recurring problems that face the country. To these students, Ryan’s anger feels honest and necessary. Others, however, feel personally attacked and “othered” by the posts. Several students report feeling singled out or shamed for their political beliefs, and some worry that the posts encourage hostility rather than understanding. A few students describe the online environment as tense and intimidating, especially for those who disagree with Ryan.

As the backlash grows, school administrators take notice. Ryan is called into the principal’s office, where he is told that while political expression is important, the way it is expressed matters. The principal explains that language which labels classmates as “the problem” risks creating a hostile environment, even when posted off campus. She argues that anger directed at individuals often causes people to shut down or become defensive, making meaningful dialogue less likely. The principal asks Ryan to remove or revise the posts and suggests he find more constructive ways to advocate for justice. The principal also makes clear that if Ryan refuses to take down posts that target classmates directly, the school may escalate its response, potentially resulting in suspension or further disciplinary action. She insists this is not about silencing Ryan’s beliefs, but about protecting the wellbeing of the broader school community both in person and online.

Ryan leaves the meeting feeling angry and misunderstood. He believes that anger has historically been a powerful force for change, pointing to social movements that relied on moral outrage to expose injustice and demand reform. From his perspective, asking him to soften his language prioritizes comfort over truth. If people feel attacked, Ryan argues, that discomfort may be exactly what forces them to reflect on the ramifications of the policy changes that he views as unjust. To him, suppressing anger risks maintaining the status quo.

Still, Ryan is starting to doubt whether his posts are actually changing minds or simply deepening divisions. While some classmates have reached out to thank him, others have unfollowed him or refused to engage in conversation at all. He questions whether calling people out publicly holds them accountable, or whether it reduces them to symbols of a problem too large for any individual to solve or take responsibility for.

### DISCUSSION QUESTIONS

1. Do we have any obligation to curtail our feelings of anger about situations that we find unjust? If so, what dictates those obligations?
2. To what extent should we consider efficacy when sharing political views online? Does this change if our goal isn’t to persuade?
3. When engaging in public forms of communication, what responsibilities do we have to consider the objective of the communication and its potential to cause harm?



## 6: Nothing to Hide?

Ava, a high school junior, uses a wide range of free apps every day. She scrolls through social media between classes, tracks her workouts on her phone, streams music while doing homework, and uses a homework-help app to study for exams. Like most of her friends, Ava rarely reads the terms of service. She assumes that if an app is widely used, it's probably safe.

One afternoon in her civics class, Ava's teacher goes on a tangent about data privacy. The class learns that many free apps collect large amounts of personal data: location history, browsing habits, messages, search queries, and even patterns in how long users pause on certain posts. This data can be sold to advertisers, used to predict behavior, or combined with other data to create incredibly detailed profiles. The teacher explains that user data is often described as "the new oil".

Ava is surprised to learn that her data may be worth far more than she expected. Advertising companies pay to target users based on their interests, fears, habits, and vulnerabilities. Fitness data can be used to infer health conditions. Location data can reveal routines, relationships, and religious or political affiliations. Even seemingly harmless data like music preferences or emoji use can help algorithms predict personality traits.

Some students in the class are alarmed. Ava's classmate, Malik, points out that once data is collected it can be used in ways users never intended, including influencing political views, determining insurance rates, or shaping job opportunities. Malik worries that people lose meaningful control over their lives when corporations know so much about them.

Others are less concerned. Ava's classmate Jordan points out that data collection enables convenience. Personalized playlists, accurate navigation apps, language translation, and content recommendations all depend on large amounts of user data. Jordan argues that most people willingly trade privacy for better services and that worrying too much about data is unrealistic. "If you're not doing anything wrong," Jordan asks, "why does it matter"? Data collection also has social benefits. Public health officials used location data during the COVID-19 pandemic to track outbreaks. Educational apps adapt to students' learning needs using performance data. Small businesses rely on targeted ads to survive. Strict limits on data use could slow innovation or make services more expensive and less accessible.

Ava values convenience and the sense of connection technology provides, but she worries about how her data might be used against her or against others who are more vulnerable. She could simply choose to avoid technology with predatory data collection policies but she wonders whether it is fair to expect individuals to protect their privacy when opting out of data collection can mean losing access to essential tools.

### DISCUSSION QUESTIONS

1. Is it reasonable to expect privacy in the digital world when many other public spaces of society have little to no expectation of privacy?
2. Is there a morally significant difference between personal data such as location and purchasing habits, on the one hand, and personal political or moral opinions on the other?

## 7: A School By Any Other Name

Vermont is a very rural state. On account of this fact, many school districts don't have their own public high school. Accordingly, they have a longstanding program of blending a public school model with a school choice model such that, if students live sufficiently far away from any public school, they may either attend a public school in a different district or receive public funds to help pay for the tuition of a private school. For a while, the state legislature had made it impermissible to use such funds for religious private schools, but in 2021 the Vermont Supreme Court ruled that religious private schools could not be excluded from the tuition grant program.

Those in favor of the court's decision argue that it is justified that the state's program extends to religious schools. Some suggest that the money is given to families, and these families have the right to use the money to further the education of their children in whichever way they see as best. They also point out that religious schools perform a lot of functions besides promoting religious education, and that some religious schools are more religious than others. Some further assert that not permitting students to use the money to go to religious schools is discriminatory against religious institutions, as these institutions are also held to significant educational standards. They also note that the law is very clear that it does not aim to advance any religious favoritism, as it does not single out Christians or Muslims or Jews as receiving particular funding, but instead the program equalizes the field for all sorts of religious and secular schools.

Those opposed to the court's decision argue that the state must avoid giving funds to religious organizations. They suggest that a necessary component of freedom of religion is a freedom from religion. They add that money is fungible, and thus, if the government gives money to promote the teaching of math or literature at a religious school, then such a school would have more funds remaining for religious education. On the other side of things, some critics might worry that if religious schools are reliant on funding from the state, that the state will actually gain a degree of control over what is or isn't allowed to be taught in those spaces. Others suggest that this court decision, by permitting the state funding of religious institutions, will initiate a slippery slope of public funds being used for religious matters.

### DISCUSSION QUESTIONS

1. If religious schools are receiving state funds, does it increase the prerogative of the state for additional oversight of religious schools?
2. When, if ever, should religious schools be expected to alter their curriculums when receiving public funds?
3. Is it permissible for religious schools to ensure that educators align with religious orthodoxy?
4. What moral considerations should go into deciding what kinds of institutions are candidates for state funding?

## 8: Here Comes a Greek Tragedy

Across the United States, colleges and universities are once again debating the role of fraternities and sororities on campus. What were once central parts of student social life and tradition, are increasingly viewed by some administrators, students, and families as dangerous or exclusionary organizations in need of reform or suspension.

In March 2024, the University of Maryland suspended the social and recruitment activities of more than 30 fraternities and sororities after officials said they had “reason to believe that multiple chapters conducted activities that threatened the safety and well-being of members of the University community”.<sup>1</sup> The ban temporarily barred social events, alcohol-related gatherings, and new member activities while the university launched a thorough investigation. In response, some fraternity groups criticized the university’s tactics, claiming that students’ rights were violated and that the university had not made clear what specific incidents prompted the disciplinary actions. Eventually, Maryland lifted the broad ban for many chapters, though several remained under limited restrictions as investigations continued.

Similar actions have unfolded at other campuses. Indiana University imposed a sweeping suspension on almost all Greek life social and philanthropic activities after ongoing allegations of dangerous behavior and hazing. Meanwhile, the University of Central Florida temporarily halted Greek social and recruitment activities to address concerns about alcohol misuse and hazing, allowing only certain approved philanthropic events to move forward with institutional oversight. Administrators in favor of banning or reforming Greek life emphasize the universities’ duty to protect student welfare and maintain a safe learning environment. Others argue that entrenched Greek systems have historically excluded or marginalized certain communities. Controversies over discriminatory membership policies, social stratification, and economic barriers within Greek life have amplified calls from some students and faculty to rethink whether these organizations belong on modern campuses.

While these measures reflect widespread concern about hazing, alcohol abuse, unsafe parties, and other forms of misconduct associated with Greek life, they don’t take into account the positive aspects of these groups. Many students, alumni, and supporters contend that fraternity and sorority systems contribute positively to campus life. Greek organizations often provide students with important social networks, leadership opportunities, philanthropic engagement, and a sense of belonging. Members of Greek life also raise significant funds for charity and maintain strong alumni connections that support institutions and future graduates. Critics of broad suspensions argue that university sanctions punish entire groups of students for the misconduct of a few, undermine students’ freedom of association, and erase longstanding traditions.

Students may engage in hazing, alcohol abuse, and other forms of misconduct or unsafe practices outside of a fraternity or sorority as well and there is some concern that targeting greek life isn’t the most effective way to make student life safer on campus.

### DISCUSSION QUESTIONS

1. Under what conditions is it fair to punish an organization because of the behavior of a few?
2. Does student freedom of association extend to university campuses if the association might engage in practices that differ from key university objectives?

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<sup>1</sup> <https://www.insidehighered.com/news/quick-takes/2024/03/04/u-maryland-suspends-most-fraternities-and-sororities>

## 9: The Population Bomb

In recent years, many countries have seen birth rates fall below what demographers call “replacement level,” roughly 2.1 births per woman. When birth rates remain below this level for extended periods, populations begin to shrink and age. This trend is sometimes referred to as demographic decline. South Korea’s total fertility rate has fallen to around 0.7, France’s to about 1.6, and even India has dipped below replacement. If current trends continue, some countries will have dramatically fewer children by the end of the century than they do today. These shifts raise concerns for governments and citizens alike. With fewer young people entering the workforce, a shrinking tax base must support a growing population of retirees. Pension systems, healthcare services, and social safety nets may face increasing strain. In some regions, declining populations have already led to school closures, labor shortages, and “ghost towns” where younger generations have moved away in search of opportunity. Along with economic effects, some worry that languages, traditions, and ways of life may slowly disappear as communities age and disperse.

Some governments have attempted to encourage family formation directly through policy. Child tax credits, paid parental leave, subsidized childcare, and housing incentives all aim to make raising children more affordable and desirable to potential parents. Some question whether governments should try to be so intimately involved in personal decisions like child birth, pointing out that often these policy based initiatives aren’t very effective. Hungary, which spends a significant portion of its GDP on family-support programs, has seen only modest increases in birth rates, remaining well below replacement level. As traditional policy tools show limited success, some commentators suggest that societies may need to rethink cultural norms around parenthood, work, and community. This leaves policymakers, communities, and individuals with a difficult question: What are we obligated to do if demographic decline threatens social systems that care for the elderly and vulnerable?

At the same time, others argue that population decline may not be entirely negative. A smaller human population could reduce pressure on the environment, lowering carbon emissions and resource consumption. Some also note that falling birth rates often accompany positive social changes, such as increased access to contraception, higher levels of education, and greater gender equality. From this perspective, demographic decline may be less a crisis than a reflection of individuals having greater freedom to decide how they want to live their lives. Additionally, there are other ways to maintain a country’s population. Some countries have expanded immigration to offset population loss. In the United States, for example, population growth over the past several decades has been driven largely by immigration rather than high birth rates. Immigration can strengthen the workforce, support public services, and help stabilize economies without pressuring citizens to have more children.

Still, it isn’t a perfect solution. Critics worry that rapid population growth through immigration can strain housing, infrastructure, and healthcare systems, and may accelerate cultural change in ways some communities find upsetting.

### DISCUSSION QUESTIONS

1. Should governments actively attempt to shape population trends, or should they accept decline as the cost of freedom, equality, and environmental sustainability?
2. Are governments morally obligated to honor past government promises (e.g. Social Security benefits) to older citizens if declining population makes keeping the promises more and more challenging?

## 10: Pirates of the Web

For many people who grew up playing video games, classic video games are cultural touchstones and the center of treasured personal memories. Unlike books or movies that can be reprinted or streamed, many older video games have become increasingly difficult to obtain legally. For decades, companies like Nintendo produced iconic titles for consoles such as the NES, SNES, and N64. Today, many of those games are not available for purchase on modern platforms or through official digital storefronts. Only a small fraction of classic games are offered through subscription services like Nintendo Switch Online or through limited-run “Classic” hardware releases and those are often sold out or expensive collectibles. This scarcity has pushed the price of original cartridges and consoles to astonishing levels, with some titles selling for hundreds or even thousands of dollars on the secondary market.

For some fans, this situation feels unfair. Game developer Hideki Kamiya and other retro gamers have pointed out that many classic games are effectively out of reach for people who want to play them, not just collect them, because they aren't sold in any modern, accessible format. Moreover, because each original copy is a finite physical object that degrades over time, the supply only shrinks, driving prices up and limiting access further. Because of these limitations, many gamers turn to emulation and piracy. They choose to download unauthorized copies of game files (called ROMs) and play them on computers or “emulators” that mimic old consoles instead of on original hardware. For many, when a game is no longer sold or re-released, piracy becomes the only practical way to experience it. These players maintain that cultural artifacts like games should remain accessible, especially when the rights holder isn't offering any legitimate means to access them. A fan who cannot legally access a game due to its high price or unavailability may argue that piracy in these cases is closer to cultural preservation than theft, especially for games that would otherwise fade into obscurity. A fan who cannot legally access a game due to its high price or unavailability may feel that pirating the game does no real harm, especially when there is no longer any way that the game's creators could profit from its sale.

Others respond that this “practical excuse” undermines the rule of law and disrespects creators' rights, setting a dangerous precedent for ignoring intellectual property simply because a product is inconvenient or expensive. Companies like Nintendo take a hard line on piracy. Nintendo's official policies clearly state that unauthorized copying of games or use of emulators with pirated ROMs is illegal and infringes on intellectual property rights, harming creators and developers. They have pursued legal action against piracy devices and software that distribute unauthorized game copies and caution that circumventing security to play copied games is unlawful. Copyright exists to protect creative work and ensure that developers are compensated for their efforts, which in turn fuels future innovation in gaming. Some point out that even games that are no longer available for sale are covered by copyright, owned by companies or developers, and their decision not to re-release them legally should be respected.

Finally, there's the question of what actually counts as “playing” and “owning” a game. In the era of digital storefronts and licensing models, consumers often never truly own digital games they purchase; access can be revoked, services shut down, and servers taken offline. This reality contrasts with physical cartridges that remain playable as long as hardware functions, even if the game is not sold by the publisher. Some see this shift as strengthening the argument for preserving games independently of their publishers, while others see it as reinforcing the rights of companies to choose when and how their games are made available.

### DISCUSSION QUESTIONS

1. Whose rights matter more in the sale of a product? The consumer, the seller, or the creator?
2. Although governed by copyright laws, what responsibility, if any, do creators and sellers have to their fans and consumers who spent money on their games?

## 11: Cover Cover Up

Christian and Ruby are carpooling to the office one morning and listening to some unfamiliar music. Christian's music streaming software is set to "shuffle" through a playlist of Motown-style soul music that the app's algorithm recommended. He and Ruby are shocked when they recognize a song as a soul-style cover of the 50 Cent song "21 Questions"<sup>1</sup>. They are both pleasantly surprised by how much they enjoy this new version of a nostalgic Hip Hop/R&B song.

Ruby pulls up the song to learn more about the artist and discovers that the cover wasn't made by a person, but by AI. She and Christian are both familiar with the concept of AI songs, and have been exposed to the sometimes humorous, but always grating, AI meme songs that go viral on social media. With this song, though, neither of them realized that what they were listening to was AI music until Ruby looked it up. After the song ends, the playlist presents a series of other genre-swapped cover songs - some of which are labeled as AI in the title, while others are by artists with human sounding names.<sup>2</sup>

All of the cover songs are similarly enjoyable, but Christian is left feeling uncomfortable. On the one hand, "cover songs" have been around forever and serve as a way for artists to pay homage to and put their own spin on beloved songs that other musicians authored. These songs feel like they require less effort to produce, though. Without the human "love" for the original work, Christian feels like there's something objectionable about creating a song based on someone else's work. AI music can be incredibly bad and he worries that the reason that these songs sound so good is that the person who made them based them off of another artist's work.

Ruby isn't sure she agrees that there is an issue. If they both enjoy the song, she doesn't think there's anything wrong with listening to it and she is glad that someone made it - even if they used AI to do so. She feels that the amount of work that goes into producing a cover is unimportant and states that if Christian is fine with other cover songs, then he should hold a similar attitude for an AI cover. After all, a human cover artist is similarly using the lyrics of another musician to produce their work - who's to say that the other artist's lyrics aren't what makes the human cover good as well?

Still, questions of plagiarism in AI are familiar and by the end of the car ride both Christian and Ruby are confused about what they should believe. Should they be wary of all cover music? If they discovered an original AI song that they enjoyed, should they feel better about it than they do AI covers? What should they do when they struggle to identify whether a song is AI generated or produced by a human?

### DISCUSSION QUESTIONS

1. What is the moral distinction between an AI-generated cover song and a human-generated cover song?
2. What moral considerations matter most when listening to AI generated music and cover songs? Are those considerations different from what's morally relevant in "human generated" work?

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<sup>1</sup> [https://www.youtube.com/watch?v=HSzEUKhjiAc&list=RDHSzEUKhjiAc&start\\_radio=1](https://www.youtube.com/watch?v=HSzEUKhjiAc&list=RDHSzEUKhjiAc&start_radio=1)

<sup>2</sup> <https://www.youtube.com/watch?v=O1kjW9FuYHY&list=RDHSzEUKhjiAc&index=2>

## 12: Pardon, Prisoner

In February 2025, Leonard Peltier, an Indigenous activist who had spent nearly fifty years in federal prison, was released following a Biden-era presidential commutation of his sentence. The decision reignited one of the most polarizing debates in modern American criminal justice: how societies should balance accountability for violent crimes with concerns about political persecution and historical injustice.

In June 1975, a violent confrontation occurred on the Pine Ridge Indian Reservation in South Dakota between members of the American Indian Movement (AIM) and federal law enforcement. Two FBI agents, Jack Coler and Ronald Williams, were killed during a shootout while attempting to serve arrest warrants. The incident took place during a period of extreme tension on Pine Ridge, where conflicts between Native activists, tribal authorities, and federal agencies had intensified amid allegations of corruption and government neglect. Leonard Peltier was a Native American activist and AIM member, and was later accused and charged with the murder of the two federal agents. In 1977, following extradition from Canada, he was convicted of first-degree murder in federal court and sentenced to two consecutive life terms.

During his incarceration, Peltier's supporters argued that he should be considered a political prisoner, incarcerated not because of conclusive proof of guilt, but because of his involvement in Indigenous activism. AIM was a prominent force in the 1970s, advocating for tribal sovereignty, enforcement of treaty rights, and an end to police brutality against Native communities. During this era, the FBI closely monitored and disrupted activist organizations, leading some to believe that Peltier's prosecution was politically motivated. Critics of Peltier's imprisonment further point to alleged misconduct during the investigation and trial citing documents released years later suggesting that the FBI may have withheld or mischaracterized evidence. Additionally, two other AIM members involved in the same shootout were acquitted on self-defense grounds. From this perspective, Peltier's imprisonment represented a broader failure of the justice system to fairly treat Indigenous defendants, particularly during periods of political unrest.

Still, the FBI, former prosecutors, and the families of the slain agents maintain that the conviction was lawful and justified. Some reject the label of "political prisoner," arguing that political beliefs do not excuse violence. They contend that even if the trial was imperfect, multiple courts upheld the conviction on appeal. Allowing release based on claims of political motivation, they argue, could set a troubling precedent by blurring the line between activism and violent crime. Throughout his imprisonment, there was a worry that freeing Peltier would dishonor Coler and Williams, who were killed while performing their duties as law enforcement officers. Further, there are concerns that granting clemency could undermine accountability and weaken the rule of law, and that releasing Peltier might erode trust in the legal system and signal that certain crimes may be excused due to political or historical context.

### DISCUSSION QUESTIONS

1. How, if at all, is it morally relevant in a commutation decision that a person has served a significant portion of their sentence?
2. Do you think that the circumstances around, or motivations behind, an illegal action should affect how we punish the perpetrator?

## 13: Holy Ghost Writing

Pastor Daniel has led Grace Community Church, a midsize Protestant congregation, for over a decade. Known for his thoughtful sermons and warm presence, he is widely respected as a spiritual guide and moral leader. Over the past year, however, Daniel has felt increasingly overwhelmed. Between pastoral counseling, hospital visits, administrative duties, and preparing weekly sermons, he often feels exhausted and worries that his preaching has become repetitive.

At the suggestion of a younger staff member, Daniel begins experimenting with an AI writing program. By entering the week's scripture passage and a brief outline of themes like hope or forgiveness, the program generates a polished sermon draft in seconds. Daniel edits the language, adds personal anecdotes, and delivers the sermon from the pulpit as usual. Congregants don't seem to notice much of a difference and continue to thank him for his guidance every week.

At first, Daniel sees the AI as just another tool, similar to commentaries or sermon books pastors have long consulted. He believes the message still reflects his beliefs and that his delivery, interpretation, and pastoral intent remain his own. If the sermon helps people reflect, pray, and grow spiritually, he reasons, the source of the words shouldn't matter. The situation changes, however, when a church volunteer named Maya discovers the AI use while helping to update the church's website. She feels unsettled. For her, sermons are not just speeches but expressions of a pastor's personal reflection, prayer, and spiritual struggle. Learning that the words guiding her faith were partially generated by a machine feels like a breach of trust. She wonders whether the sermons are still "authentic" or whether the congregation is being unknowingly misled.

Maya raises the issue with other church members. Some share her concern, arguing that spiritual guidance carries special moral weight. A pastor is expected to believe in the message and to have personally thought through its implications and meaning. The congregants feel that if sermons are ghostwritten, whether by a person or by an AI, that something essential is lost. They attend church for the sake of Daniel's spiritual expertise and see the AI sermons as lessening the truth of his words.

Others disagree. They point out that pastors have always relied on external resources, including study guides, other sermons, and theological scholarship. If AI helps a pastor communicate more effectively and avoid burnout, isn't that a benefit to the community? They argue that authenticity lies in sincerity and intention, not in typing every word oneself. After all, congregants are responding to the meaning of the message, not the method by which it was drafted.

### DISCUSSION QUESTIONS

1. How is using generative AI to write a speech or sermon different, morally speaking, from reading books or articles to prepare one's speech or sermon?
2. How, if at all, is the way in which something is prepared morally significant if the end result is the same?
3. Do the moral considerations shift if one is using AI in a religious or spiritual setting as opposed to a secular one? If Pastor Daniel used AI to create an agenda for an advisory board meeting, for example, is that ethically different from using it to create a sermon?



## 14: Long Overdue

For generations, libraries have operated on a simple principle: shared access. A reader borrows a book for a limited time, returns it, and makes it possible for someone else to borrow the book. With the rise of digital lending platforms like Libby, libraries now loan e-books and audiobooks that automatically expire after a set borrowing period, mimicking the circulation of physical copies.

Olivia is a high school junior and she uses Libby regularly through her local public library. She loves that the app gives her free access to novels, nonfiction, and audiobooks she could not otherwise afford and the convenience of checking out books from the comfort of home. She's a busy person, though, and unfortunately she isn't always able to finish her books before they come due. Having to wait weeks for the copy she borrowed to become available again is frustrating and she's left a few books unfinished because of the hassle.

One evening while browsing an online forum, Olivia learns about a workaround: if a reader downloads a library e-book to their e-reader and then puts the device on airplane mode before the loan expires, the book remains accessible even after the official return date. The copy goes back into circulation for other patrons, but the original borrower can keep reading offline for days or even weeks. Olivia is excited, but conflicted. On the one hand, she knows that this behavior violates Libby's terms of service and the spirit of library lending rules. Libraries rely on trust and cooperation, and intentionally bypassing safeguards feels dishonest. If everyone did this, she worries, publishers might impose stricter limits or raise prices for libraries, potentially reducing access for everyone.

On the other hand, Olivia feels that no one else is directly harmed by her keeping the book longer. The library's copy becomes available on time, and no other reader has to wait. Because the Libby book limit is only imposed by a licensing agreement, her action doesn't deprive anyone else of access unlike how hoarding a physical book might. From this perspective, the rule seems artificial. It is a technical restriction imposed by publishers rather than a genuine necessity. Olivia wonders whether breaking a minor rule is justified when it allows her to fully engage with literature without harming others. After all, libraries exist to spread knowledge, not to enforce rigid rules. If technology allows more people to read more deeply, she thinks that the outcome may even align with the library's core mission. Perhaps limiting access to information in this case may be more about protecting profits than promoting learning. Her actions could, then, be a form of resistance against a greedy system.

Olivia's friend disagrees with her. She explains to Olivia that behaving ethically here isn't only about outcomes, but about respecting rules and institutions built on mutual trust. Libraries negotiate contracts, follow legal agreements, and depend on users to act in good faith. Even if no one is immediately harmed, intentionally circumventing rules undermines the cooperative norms that make public goods possible. If users decide which rules "count," a system may eventually collapse.

### DISCUSSION QUESTIONS

1. Does it make a difference, morally, whether the decision to keep the e-book is known to anyone other than Olivia?
2. Would Olivia have different obligations if she were using similar strategies to maintain access to other types of rented digital media like movies or video games?

## 15: Going Batty

In North Carolina, bats are an essential part of the ecosystem. At least 17 native bat species occur in the state, including several that are federally listed as endangered or threatened, as well as others designated as “species of greatest conservation need.” Bats provide critical ecological services that benefit both human health and agriculture. For example, in North Carolina bats help control insect populations by consuming large numbers of mosquitoes and crop pests each night. Additionally, bats feed on fruit and nectar, which contributes to plant pollination and seed dispersal.. Because of their ecological importance and declining populations, all bat species in North Carolina are protected under state wildlife laws. It is unlawful to hunt, trap, harm, kill, relocate, or intentionally disturb bats or their habitats. Violations can result in fines or misdemeanor charges. Special permits are required for bat rehabilitation or research beyond certain minimal exclusions.

At the same time, bats can carry rabies, a deadly virus that affects the central nervous system of mammals. Human rabies cases in the United States are rare, averaging only one or two deaths per year. However, most cases have been traced to bat exposure. Because bat bites can occur while people are sleeping, and because a bat’s teeth are small enough that a bite may not be felt or leave a visible mark, exposures can go unnoticed. If a bat enters a home and could have come into contact with a person who was sleeping, a child, or a pet, public health authorities require that the bat be captured for rabies testing. Because a diagnosis can’t be made by appearance alone, animal control officers will euthanize the captured bat and submit it to the State Laboratory of Public Health for testing. If a bat inside a residence escapes or is intentionally released before it can be captured, it cannot later be tested, complicating medical decision-making for people who may have been exposed. Public health guidance emphasizes both the need to prevent rabies infection in humans and pets and the legal prohibition against ordinary citizens handling, relocating, or killing bats themselves. Residents are instructed to contact animal control rather than attempt to capture, release, or euthanize animals on their own, in order to avoid legal consequences and reduce personal risk.

This situation creates a moral dilemma for homeowners. On one hand, the public health risk of rabies is severe. Rabies is nearly always fatal once symptoms appear, and even a possible exposure can require urgent medical treatment. The goal of testing a bat for rabies is to save lives and prevent suffering. On the other hand, bats are a protected and vulnerable species that play an essential role in ecosystems and are already facing population declines. Fewer than 1% of bats carry rabies, so the likelihood of infection is low, even if contact occurs. As a result, homeowners may feel caught between observing wildlife protections, protecting their families and pets, and following public health guidelines.

When a bat must be euthanized for testing, the action can appear to conflict with broader conservation goals. Some question whether it is morally justified to kill a bat in order to eliminate a small risk to human life. Others argue that, regardless of the low statistical odds, the duty to protect human life outweighs the obligation to preserve an individual animal, even one that is beneficial and protected.

### DISCUSSION QUESTIONS

1. When policy and conservation ask us to act in contrasting ways, how should we decide what our moral obligations are?
2. Who should get to decide what actions are permissible in situations where public and private life intersect?



COLLEGE OF ARTS AND SCIENCES  
Parr Center for Ethics

240 EAST CAMERON AVENUE (CB #3125)  
CHAPEL HILL, NORTH CAROLINA 27599

**NHSEB.ORG | ETHICSBOWL@UNC.EDU**



**#NHSEB #ETHICSBOWL**